

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 3369

By: Hildebrant, Hall, Boles,
and Alonso-Sandoval of the
House

and

Gillespie of the Senate

COMMITTEE SUBSTITUTE

An Act relating to food truck fire suppression;
amending Section 1, Chapter 106, O.S.L. 2024, as
amended by Section 1, Chapter 342, O.S.L. 2025 (74
O.S. Supp. 2025, Section 325.20), which relates to
mobile food establishments; modifying mandate for
automatic fire extinguishing system in food trucks;
modifying entity from which to obtain certain permit;
removing expiration date; updating statutory
language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 106, O.S.L.
2024, as amended by Section 1, Chapter 342, O.S.L. 2025 (74 O.S.
Supp. 2025, Section 325.20), is amended to read as follows:

Section 325.20. A. All mobile food preparation vehicles
operating within this state ~~prior to July 1, 2024,~~ that are capable
of producing smoke or grease-laden vapors shall be in compliance
with the most current adopted fire code. ~~With the exception~~ In lieu
of an automatic fire extinguishing system, ~~such requirement an~~

1 equivalent alternative shall be permitted, whereby such system shall
2 be optional if the mobile food preparation vehicle is equipped with
3 at least two portable fire extinguishers meeting National Fire
4 Protection Association (NFPA) 10: Standard for Portable Fire
5 Extinguishers and all employees receive documented annual fire
6 safety training approved by the State Fire Marshal. Such
7 requirements shall apply to vehicles including, but not limited to,
8 vehicles utilizing electric energy, liquefied petroleum gas,
9 compressed natural gas, or a combination thereof for cooking,
10 provided that portable fire extinguishers are installed and
11 maintained in accordance with the most current version of NFPA 10:
12 Standard for Portable Fire Extinguishers. A six-liter Class K-
13 rated, portable fire extinguisher is required for all cooking
14 equipment involving solid fuels, vegetable or animal oils and fats,
15 or a combination thereof. All portable fire extinguishers shall be
16 in clear view and immediately available for use.

17 B. All mobile food preparation vehicles utilizing, handling, or
18 transporting liquefied petroleum gas or any liquefied petroleum gas
19 system, equipment, container, apparatus, or appliance shall receive
20 and maintain a permit from, ~~and be inspected annually by, the~~
21 ~~Oklahoma Liquefied Petroleum Gas Administration or its employees, in~~
22 ~~conjunction with~~ the Oklahoma Liquefied Petroleum Gas Board. The
23 Board shall promulgate rules related to such permits, including
24 inspection requirements. The State Fire Marshal ~~issuing~~ shall issue

1 an annual operation permit decal to mobile food preparation
2 vehicles.

3 ~~C. The provisions in subsection A of this section shall expire~~
4 ~~on January 1, 2026, and all mobile food preparation vehicles shall~~
5 ~~comply with the most current adopted fire codes set forth by this~~
6 ~~state.~~

7 ~~D.~~ Mobile food preparation vehicles shall be under the
8 jurisdiction of the State Fire Marshal for fire and life safety code
9 compliance and shall be inspected annually by the State Fire Marshal
10 to ensure compliance with the latest version of the state-adopted
11 minimum codes for fire and life safety as adopted by the Oklahoma
12 Uniform Building Code Commission. The State Fire Marshal shall
13 coordinate, at minimum, annual inspections conducted:

14 1. Within each of the four quadrants of this state; and

15 2. Twice within each county with a population exceeding four
16 hundred thousand (400,000) according to the latest Federal Decennial
17 Census.

18 ~~E.~~ D. Upon approval, the State Fire Marshal shall issue an
19 operational permit decal indicating that the vehicle meets the
20 minimum fire and life safety code requirements adopted at the time
21 of inspection.

22 ~~F.~~ E. Nothing in this section shall prevent:

23 1. The State Fire Marshal from enforcing the minimum fire code
24 requirements as allowed by law and revoking the operations of a

1 mobile food preparation vehicle for cause when such vehicle is
2 determined to be inherently dangerous to the health, safety, or
3 welfare of persons within this state;

4 2. A political subdivision from enforcing the event permits,
5 operational fees, land use regulations, zoning, or other ordinances
6 in relation to the operation of a mobile food preparation vehicle
7 within the boundaries of the political subdivision; or

8 3. The State Department of Health from licensing and regulating
9 mobile food preparation vehicles as provided by the provisions of
10 Title 63 of the Oklahoma Statutes and rules promulgated by the State
11 Commissioner of Health.

12 ~~G.~~ F. The State Fire Marshal may promulgate rules necessary to
13 implement the provisions of this section. Such rules shall have
14 uniform force and effect throughout this state and no political
15 subdivision or other agency shall enact or enforce any fire or life
16 safety code-related ordinances, rules, or other requirements for
17 mobile food preparation vehicles, except in a county with a
18 population exceeding four hundred thousand (400,000) according to
19 the latest Federal Decennial Census.

20 SECTION 2. This act shall become effective November 1, 2026.
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